

December 27, 2007



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 14609

EXPIRATION DATE: November 30, 2009

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: United States Enrichment Corporation (USEC)
Paducah, KY
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the one-time transportation in commerce of up to 12 model 480M cylinders and 36 model 48A cylinders containing uranium hexafluoride of less than 1.0 weight percent of Uranium-235 with minimal technetium-99 contamination from their plant in Paducah, KY to their plant in Piketon, OH where the cylinders will be processed for removal of the technetium-99. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED:
 - a. 49 CFR § 173.420(a)(2) as it pertains to the maximum gouge and dent size; maximum fill limit; proper plug installation and maintenance (cross threaded plugs prohibited); and proper cylinder identification (nameplates are required) for cylinders built in accordance with American National Standards Institute (ANSI) Standard N14.1.

- b. 49 § 173.420(b) as it pertains to periodic inspection, testing, marking and conformance with ANSI N14.1.
5. BASIS: This special permit is based on the application of United States Enrichment Corporation (USEC) dated September 4, 2007 and augmented on December 19, 2007. Both documents were submitted in accordance with § 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Radioactive material, uranium hexafluoride non-fissile or fissile excepted	7	UN 2978	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - All cylinders transported under this special permit shall be overpacked using a P-48 overpack identified in the special permit application.

b. OPERATIONAL CONTROLS -

1. All cylinders transported under this special permit will be consigned as exclusive use shipments.

2. Prior to loading in the P-48 overpack, each cylinder is inspected by USEC operations personnel and by USEC nuclear safety and quality personnel. If significant corrosion or pitting is observed, USEC nuclear safety and quality personnel will perform an ultrasonic inspection to ensure compliance with minimal wall thickness standards.

3. Cylinders found to have any of the following conditions may not be shipped under the terms of this special permit: unacceptable dents or gouging (not identified in permit application); excessive corrosion; any crack or bulge; broken or separated stiffening rings; defective lifting lugs; broken, bent or distorted valve; broken, bent or distorted cylinder valve stem; cylinder valve port threads showing excessive wear, damage or corrosion and less than 1 or greater than 7 cylinder valve threads exposed.

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- c. MARKING - The package must be plainly and durably marked "DOT-SP 14609" in accordance with § 172.301(c).
8. SPECIAL PROVISION: A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term

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"exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Theodore L. Willke

Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: BOYLE